

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JAMEL JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER JOSHUA HEALY and
NYPD OFFICER JOHN DOE,

Defendants.
----- X

Plaintiff designates
Bronx County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

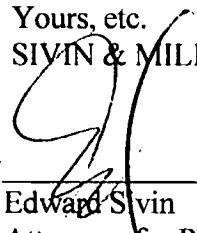
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 12, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Svin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Officer Joshua Healy, c/o NYPD 46th Precinct, 2120 Ryer Ave, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JAMEL JOSEPH,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER JOSHUA HEALY and
NYPD OFFICER JOHN DOE,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notice of claim and intention to sue was presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Joshua Healy (hereinafter “Healy”) was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Healy was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Healy was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer John Doe (hereinafter “Doe”), whose true name is unknown to plaintiff, was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, Doe was working with and in the presence of Healy.

9. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Doe was acting under color of state law.

11. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

13. That on July 26, 2017, plaintiff was walking on the sidewalk in front of a private residence in Bronx, NY.

14. That while plaintiff was walking on the sidewalk, he was approached by Healy who, without a warrant, consent, probable cause, reasonable suspicion, or other justification, forcibly stopped and seized plaintiff by grabbing plaintiff by the neck.

15. That after Healy forcibly seized plaintiff, Doe approached plaintiff and threatened to use a taser on plaintiff, thereby placing plaintiff in imminent fear of harm and for his safety.

16. That after threatening plaintiff, Doe, without a warrant, consent, probable cause, reasonable suspicion, or other justification, forcibly seized plaintiff and placed plaintiff in handcuffs.

17. That after they forcibly seized plaintiff, Healy and Doe arrested plaintiff and then imprisoned plaintiff at various locations, including a police vehicle and a police precinct.

18. That after arresting and imprisoning plaintiff, Healy caused plaintiff to be criminally prosecuted for harassment, a crime that plaintiff did not commit, that Healy knew plaintiff did not commit, and for which Healy knew he did not have probable cause to charge plaintiff.

19. That in support of the aforesaid prosecution, Healy authored, signed, and executed a sworn accusatory instrument in which he made accusations against plaintiff that he knew were false.

20. That in further support of the criminal prosecution, Healy made statements to the Office of the District Attorney that were false and that he knew were false, including that plaintiff placed his hands on Healy and pushed Healy.

21. That the aforementioned false statements and fabrications by Healy constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's or Criminal Court judge's decision on plaintiff's guilt or innocence.

22. That as a consequence of the aforesaid prosecution, plaintiff was required to appear in court and was restricted in his travel and liberty.

23. That on November 17, 2017, a trial was held in Criminal Court with respect to the harassment charge on which plaintiff was prosecuted.

24. That during the course of the trial in Criminal Court, Healy gave sworn testimony and made accusations against plaintiff that were false and that Healy knew were false, including that he initially approached plaintiff because he observed plaintiff in the presence of open alcohol containers, and that plaintiff thereafter pushed Healy and placed Healy in fear of his safety and in an alarmed state.

25. That the aforementioned false testimony by Healy constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence the Criminal Court judge's decision on plaintiff's guilt or innocence.

26. That at the conclusion of the trial, plaintiff was found not guilty and the criminal proceeding terminated favorably to plaintiff.

27. That Healy and Doe observed the illegal and improper actions taken by each other toward plaintiff, had reasonable opportunities to intervene to prevent and/or stop those illegal and improper actions, and willfully failed and refused to do so.

28. That the aforesaid actions by Healy and Doe were done intentionally and maliciously.

29. That as a result of the aforementioned actions by Healy and Doe, plaintiff sustained physical and emotional injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

30. That upon information and belief, prior to the events alleged herein, Healy and Doe had used excessive force against and had falsely arrested, falsely imprisoned,

maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

31. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Healy and Doe had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

32. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Healy and Doe were unfit to act as police officers.

33. That despite the City's and the NYPD's prior knowledge of Healy's and Doe's unfitness and propensities, the City and the NYPD knowingly retained Healy and Doe as NYPD officers and failed to take necessary remedial measures, thereby subjecting plaintiff to Healy's and Doe's improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery Under NY State Law)

34. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

35. That the aforesaid actions of Healy and Doe constitute an assault and battery of plaintiff, for which Healy and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

36. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

37. That the aforesaid actions of Healy and Doe constitute a false arrest and false imprisonment of plaintiff, for which Healy and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

38. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

39. That the aforesaid actions of Healy and Doe constitute a malicious prosecution of plaintiff, for which Healy and Doe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST HEALY and DOE

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations)

40. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

41. That the aforesaid actions by Healy and Doe in improperly seizing, using excessive force against, falsely arresting, falsely imprisoning, and maliciously prosecuting plaintiff constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST HEALY and DOE
(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on Failure to Intervene)

42. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

43. That the aforesaid actions by Healy and Doe in failing to intervene to prevent and/or stop the aforesaid improper conduct by their fellow officer constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST HEALY
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforesaid actions by Healy constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, and Retention)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid actions by Healy and Doe and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Healy and Doe.

EIGHTH CAUSE OF ACTION AGAINST THE CITY

(Monell Claim: Deliberate Indifference)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by Healy and Doe and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Healy and Doe in which Healy and Doe violated the constitutional rights of citizens of the State of New York.

50. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

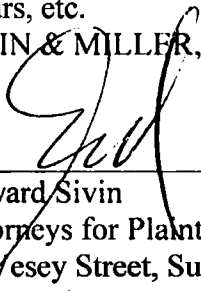
WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Healy and Doe in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction

over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
July 12, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

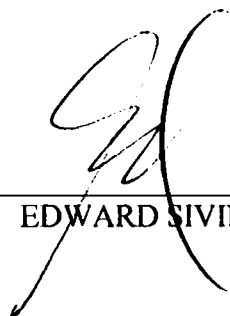
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 12, 2018



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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JAMEL JOSEPH,

Plaintiff,

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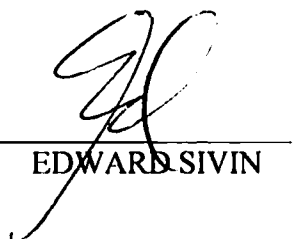
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
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20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 12, 2018